

JEFFREY S. GRAY (5852)
Utah County Attorney
CHAD E. GRUNANDER (9968)
RYAN MCBRIDE (13079)
LAUREN HUNT (14682)
DAVID STURGILL (7995)
CHRISTOPHER D. BALLARD (8497)
Deputy Utah County Attorneys
100 East Center, Suite 2100
Provo, Utah 84606
Telephone: (801) 851-8026
Email: dcourt@utahcounty.gov
Counsel for plaintiff State of Utah

FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH

STATE OF UTAH,
Plaintiff,

v.

TYLER JAMES ROBINSON,
Defendant.

State's Memorandum Opposing
Defendant's Motion to Exclude Still
Photographers, TV Cameras and
Microphones from the Courtroom

Case No. 251403576

Judge Tony F. Graf

The State of Utah, through its attorneys Lauren M. Hunt and Chad E. Grunander, hereby submits this Memorandum Opposing Defendant's Motion to Exclude Still Photographers, TV Cameras, and Microphones from the Courtroom.

INTRODUCTION AND SUMMARY OF POSITION

The defense asks this Court to take the extraordinary step of categorically terminating or substantially restricting electronic media coverage of all proceedings in this case. Although framed as an application of Utah Rule of Judicial Administration 4-401.01, the motion ultimately rests on a far broader premise: that in a modern, high-profile criminal prosecution involving a politically

charged event, transparency itself is incompatible with fairness, safety, dignity, and the administration of justice. That premise is inconsistent with governing constitutional law, with Utah’s rules, and—most importantly—with the actual posture of this case.

The State does not dispute that this case has generated intense public interest. Nor does the State dispute that modern media ecosystems amplify and distort information. But those realities do not justify the remedy the defense seeks. The Constitution does not permit courts to compromise their commitment to openness simply because publicity is widespread, contentious, or uncomfortable. Nor does Rule 4-401.01 authorize termination of electronic coverage based on speculative harms, generalized critiques of media culture, or fears untethered from concrete courtroom effects.

To the contrary, where a case has already entered the public sphere in a significant and irreversible way—as this one has—the controlled, court-regulated use of electronic media serves the very interests the defense invokes: accuracy, accountability, public confidence, and the legitimacy of judicial outcomes. The Supreme Court has long recognized that openness in criminal proceedings enhances fairness and public confidence in the justice system. See *Press-Enterprise Co. v. Superior Court*, 464 U.S. 501, 508 (1984) (“*Press-Enterprise I*”) (“Openness... enhances both the basic fairness of the criminal trial and the appearance of fairness so essential to public confidence in the system”); *Richmond Newspapers, Inc. v. Virginia*, 448 U.S. 555, 572 (1980) (“[I]t is difficult for [people] to accept what they are prohibited from observing.”). And under the Court’s access jurisprudence, public access is favored where it plays a “significant positive role in the functioning of the judicial process.” *Press-Enterprise Co. v. Superior Court*, 478 U.S. 1, 8 (1986) (“*Press-Enterprise II*”).

Consistent with these principles, the Court in *Chandler v. Florida* rejected any presumption that electronic media coverage prejudices a defendant’s right to a fair trial and held, absent a showing of actual prejudice, that states may permit such coverage, subject to judicial control. 449 U.S. 560, 581–83 (1981). The defense’s motion is lengthy, but it does not demonstrate—by evidence or by case-specific findings—that electronic media coverage of courtroom proceedings in this case creates a reasonable likelihood of prejudice that cannot be mitigated through existing or tailored safeguards. Instead, it advances a theory of inherent danger that the Supreme Court has repeatedly rejected and that Utah’s rules were specifically designed to avoid.

ARGUMENT

I. GOVERNING LEGAL PRINCIPLES

a. There is a Strong Presumption of Openness

The defense is correct that there is no freestanding First Amendment right to televise criminal proceedings. But that proposition does not resolve this motion. The Supreme Court’s access jurisprudence—from *Richmond Newspapers* through *Press-Enterprise II*—establishes that criminal proceedings are presumptively open, and that openness promotes oversight and confidence in the courts.

In *Richmond Newspapers*, the Court recognized the structural value of open criminal proceedings and explained that the “sure knowledge that anyone is free to attend gives assurance that established procedures are being followed” and that “people ... find it difficult ... to accept what they are prohibited from observing.” 448 U.S. 555, 572 (1980). In *Press-Enterprise I*, the Court held that closure is permissible only upon an “overriding interest” supported by findings that closure is “essential to preserve higher values” and “narrowly tailored.” 464 U.S. at 510. And in *Press-Enterprise II*, the Court applied the “experience and logic” framework and held that where

fair-trial interests are asserted, closure is improper absent a showing of a “substantial probability” of prejudice and a finding that reasonable alternatives are inadequate. 478 U.S. 8, 14–15. Under this “experience and logic” framework, courts consider whether public access plays “a significant positive role” in the functioning of the particular process. *Id.* at 8. Against this backdrop, the Supreme Court has made equally clear that the Constitution does not prohibit electronic media coverage of criminal trials.

In *Chandler v. Florida*, 449 U.S. 560 (1981), the Court squarely held that states may permit cameras in courtrooms and that doing so does not, without more, violate due process. Rejecting the argument that broadcast coverage is inherently prejudicial, the Court explained that the mere presence of the broadcast media does not inherently render a trial unfair. *Id.* at 581. Critically, the Court refused to adopt any presumption of prejudice and held that defendants must demonstrate actual, identifiable prejudice, not conjecture or speculation. *Id.* at 581–83. The Court further emphasized that trial courts retain broad authority to regulate coverage through decorum orders and supervision, and expressly encouraged states to experiment with camera access under judicial control. *Id.* at 582–83.

Earlier decisions upon which the defense relies do not support a contrary rule. In *Estes v. Texas*, 381 U.S. 532 (1965), the Court addressed uniquely disruptive circumstances involving obsolete technology and uncontrolled courtroom conditions, and *Chandler* declined to extend *Estes*’s reasoning to modern, regulated coverage. 449 U.S. at 573–75. Likewise, *Hollingsworth v. Perry*, 558 U.S. 183 (2010), did not hold that courtroom cameras are unconstitutional. Rather, the Court expressly declined to decide the broader constitutional question and resolved the case on narrow procedural grounds involving a district court’s deviation from established rules without

proper notice. *Id.* at 191–92. Thus, governing constitutional law establishes three dispositive principles:

- (1) Criminal proceedings are presumptively open;
- (2) Cameras are not inherently prejudicial; and
- (3) Restrictions require a case-specific showing of actual or likely harm that cannot be mitigated through judicial control.

b. Utah Rule of Judicial Administration 4-401.01 Reflects the Same Constitutional Balance

Utah Rule of Judicial Administration 4-401.01 precisely embodies the balance articulated in *Chandler*. The rule establishes a presumption that electronic media coverage by a news reporter “shall be permitted” when the predominant purpose is journalism or dissemination of news to the public. Utah R. Jud. Admin. 4-401.01(2)(A).

The rule authorizes restriction only upon consideration of enumerated, case-specific factors, including whether coverage creates a reasonable likelihood of prejudice to a fair proceeding, risks to safety or privacy, or other harm to the administration of justice. *Id.* 4-401.01(2)(B). Importantly, the rule does not authorize categorical bans based on generalized critiques of media culture, political controversy, or public reaction. It requires a case-specific decision based on the record and the availability of less restrictive alternatives.

As reflected in the Utah Judicial Council’s 2012 Final Report, which informed adoption of the rule, Utah deliberately adopted a presumption of access after reviewing extensive empirical research demonstrating that controlled electronic coverage does not compromise fairness, juror impartiality, or courtroom decorum, and often enhances public understanding and institutional legitimacy.

c. The Defense's Attack on Utah's 2012 Final Report Misstates the Role of Empirical Research and the Court's Authority Under Rule 4-401.01

A substantial portion of Defendant's motion is devoted to attacking the empirical research underlying Utah's 2012 Final Report, which informed adoption of Rule 4-401.01. Defendant contends that the research is outdated, methodologically flawed, and incapable of accounting for modern social media, political polarization, and algorithmic amplification. From this critique, Defendant urges the Court to discount the presumption of access embodied in Rule 4-401.01 and to treat electronic media coverage as presumptively dangerous in this case. That argument misapprehends both the role of empirical research in the adoption of court rules and the role of this Court in applying them.

First, Rule 4-401.01 represents a formal policy determination by the Utah Judicial Council after extensive study, public comment, and institutional deliberation. The rule remains in force and binding on this Court unless and until amended through the rulemaking process or invalidated by an appellate court. Trial courts are not authorized to disregard duly adopted statewide rules based on academic disagreement with the studies that informed their adoption. The defense has not cited any cases that have questioned the validity of Rule 4-401.01, or any court that has held that the empirical foundation underlying the rule has been superseded by technological change. Absent such authority, this Court's obligation is to apply the rule as written, not to reassess the Judicial Council's policy judgment or to substitute its own view of evolving social-science literature.

Second, the defense's critique of the 2012 Final Report does not alter the governing constitutional standard. Long before Utah adopted Rule 4-401.01, the United States Supreme Court rejected the premise that cameras are inherently prejudicial and refused to adopt any presumption of harm. *Chandler*, 449 U.S. at 581–83. The Court emphasized that due process analysis turns on

case-specific prejudice, not generalized fears about media influence or speculative psychological effects. *Id.* That framework has not changed.

Third, the defense's attack on the Final Report improperly conflates academic debate with the legal standard governing courtroom access. Rule 4-401.01 does not require the Court to determine whether existing research perfectly captures every dimension of contemporary media culture. It requires the Court to assess, based on the record before it, whether electronic media coverage in this case creates a reasonable likelihood of prejudice or harm that cannot be mitigated through judicial management. General critiques of social-science methodology and predictions about hypothetical harms do not satisfy that standard. *See Nebraska Press Ass'n v. Stuart*, 427 U.S. 539, 562–68 (1976); *Press-Enterprise I*, 464 U.S. at 510. Likewise, in the context of electronic media coverage, the Supreme Court has rejected conjectural claims of prejudice and required a showing of actual, identifiable harm. *See Chandler* 449 U.S. at 578, 581–83.

Fourth, the defense's argument proves too much. If accepted, it would mean that the more controversial and politically charged the events underlying a case become, the less transparent the judicial process should be. That proposition is directly contrary to the principles underlying public access jurisprudence. The Supreme Court has repeatedly emphasized that openness is most critical precisely when public interest is intense and confidence in institutions is under strain. *Richmond Newspapers* 448 U.S. at 571–73.

Finally, even the 2012 Final Report itself did not purport to eliminate all risk or to resolve every future technological development. It concluded, consistent with decades of judicial experience nationwide, that regulated electronic coverage under judicial supervision does not systematically undermine fairness, juror impartiality, or courtroom decorum, and often enhances public understanding and institutional legitimacy.

The defense offers no evidence that those core conclusions are no longer valid in this courtroom. Instead, it asks this Court to discard a statewide presumption of access and create a new de facto rule of exclusion based on academic critique and predictions about potential future harms. Rule 4-401.01 does not authorize such a result.

II. DEFENDANT’S MOTION ILLOGICALLY AND INCORRECTLY SUBSTITUTES PAST PUBLICITY FOR A SHOWING OF ACTUAL PREJUDICE TO A FUTURE TRIAL, AND UNJUSTIFIABLY REJECTS TIME-HONORED MECHANISMS FOR ENSURING A FAIR TRIAL

The defense advances six central claims:

- (1) That pretrial disclosures by prosecutors and public officials have already so tainted the jury pool that traditional safeguards are ineffective, and termination of electronic coverage is constitutionally required;
- (2) That empirical research cited in Utah’s 2012 Final Report is outdated or flawed;
- (3) That modern social media, political polarization, and algorithmic amplification create unprecedented risks of prejudice;
- (4) That electronic coverage will be used for sensationalism rather than journalism;
- (5) That cameras increase risks to safety, privacy, and dignity of participants;
- (6) That this case, because of its notoriety and the political context of the underlying events, is categorically unsuitable for electronic coverage.

Even if each of these concerns were credited at a general level, none justifies the relief sought. Rule 4-401.01 does not authorize courts to terminate coverage because media environments are imperfect, because public discourse is heated, or because a case concerns a controversial event. The rule authorizes restriction only where there is a reasonable likelihood of specific, unmitigable harm arising from courtroom coverage itself.

The defense mistakenly conflates prior publicity with courtroom transparency, and external commentary with judicial process. Those conflations are the motion’s fundamental flaw. This case arose, and will remain, in the public eye. That reality favors greater transparency of case proceedings, not less. And as this Court has already demonstrated in part, it possesses a variety of

tools to manage ongoing media coverage, and the effects of that coverage, to ensure that it conducts this trial in a way that justly balances the public's and Defendant's constitutional rights.

a. The Defense's Allegations Concerning Pretrial Disclosures Do Not Support Termination of Electronic Media Coverage

Each of the defense's specific disclosure allegations illustrates that flaw. The defense devotes extensive briefing to alleged violations of GRAMA, professional-conduct rules, and federal regulations arising from the release of the probable cause materials, the reading of the Information at a press conference, the dissemination of a booking photograph, and statements by elected officials. Even if the Court were to assume *arguendo* that portions of the defense's narrative were accurate, those allegations do not justify the extraordinary remedy sought here: categorical termination of electronic courtroom coverage. The motion fails for multiple independent reasons.

i. The Prosecution Has Complied with the Rules Governing Disclosure of Information in a Criminal Proceeding.

The defense argues that alleged violations of statutes, rules, or regulations governing extrajudicial statements constitute an "important factor" in determining whether the courtroom should be closed to electronic media. Mot. at 91–92. It then devotes a substantial portion of its motion alleging that the "detailed statement of probable cause [that the County Attorney] read to and then released to the media in its entirety" on September 16, 2025, along with other remarks made during that press conference, violated Rule 3.6 of the Utah Rules of Professional Conduct and provisions of the Government Records Access and Management Act (GRAMA). *See id.* at 92–117.

Whether an extrajudicial statement violated a statute or rule, however, has no bearing on whether that statement warrants closing the courtroom to electronic media. Rule 4-401.01 requires a case-specific showing that court-regulated coverage creates a reasonable likelihood of prejudice

that cannot be mitigated through judicial control. Alleged violations of unrelated disclosure rules do not satisfy that standard. In any event, the defense’s claims against the County Attorney are wholly unfounded. The County Attorney’s reading and dissemination of the Information at the September 16, 2025 press conference was lawful and appropriate as a matter of court rule and long-standing practice.

Rule 3.6(a) of the Utah Rules of Professional Conduct provides that a lawyer participating in litigation “shall not make an extrajudicial statement that the lawyer knows or reasonably should know will be disseminated by means of public communication and will have a substantial likelihood of materially prejudicing an adjudicative proceeding in the matter.” URPC 3.6(a). The Comment to that rule identifies certain subjects that are “more likely than not” to have a materially prejudicial effect. URPC 3.6 cmt. 5. But Rule 3.6 also contains express exceptions. Specifically, Rule 3.6(b) provides that, “[n]otwithstanding” the general prohibition, “a lawyer may state” information contained in a public record, as well as a defendant’s identity and other basic information. URPC 3.6(b). The County Attorney scrupulously complied with Rule 3.6.

The probable cause statement contained in the Information falls squarely within Rule 3.6(b)’s public-record exception. The Utah Rules of Judicial Administration provide that, unless otherwise classified, “[c]ourt records are public.” Utah R. Jud. Admin. 4-202.02(1). Rule 4-202.02 does not otherwise classify a criminal Information as nonpublic. To the contrary, it expressly includes an “information” in a non-exclusive list of court records that “are public records.” Utah R. Jud. Admin. 4-202.02(2)(HH). And Utah Rule of Criminal Procedure 4(c) requires that an information alleging a felony include “a statement of facts sufficient to support probable cause.” Accordingly, once filed with the Court, the Information—including the probable cause statement supporting it—constitutes a public judicial record that may be disclosed by the prosecutor. URPC

3.6(b)(2). That public status arises from the Court’s own rules governing access to judicial records, not from GRAMA.

The defense nevertheless asserts that, notwithstanding the plain language of Rule 3.6, a prosecutor violates the rule by stating information contained in a public record if the subject matter appears in Comment 5. Nothing in the rule or its comments supports that proposition. The defense relies on two attorney-discipline cases from other jurisdictions—*In re Gansler*, 835 A.2d 548 (Md. 2003), and *In re Brizzi*, 962 N.E.2d 1240 (Ind. 2012)—but those cases support, rather than undermine, the County Attorney’s conduct here.

In *Gansler*, the Maryland Court of Appeals recognized the public-record exception as a “safe harbor” for attorneys, holding that to receive its protection, a lawyer must not provide information beyond quotations from or references to public documents. 835 A.2d at 569, 683. Even under that narrow construction, the County Attorney’s conduct fits squarely within the safe harbor: he read directly from the Information.

Brizzi likewise confirms the propriety of the statements at issue. There, the Indiana Supreme Court adopted *Gansler*’s definition of “public record” and held that a probable cause affidavit qualifies so long as it is on file with a government entity to which the public has lawful access. 962 N.E.2d at 1247. *Brizzi* added one additional requirement: the prosecutor must make clear that what is being disclosed reflects the contents of a public document and not the prosecutor’s own opinion about the evidence or the defendant’s guilt. *Id.* The Utah County Attorney satisfied that requirement explicitly and repeatedly.

Before reading from the probable cause statement, the County Attorney stated: “Turning to the 10-page Information, these are the allegations.” September 16, 2025 County Attorney Press Conference Statement. After reading from the Information, he reiterated that point:

Now, as I stated at the beginning, *these are allegations*. And like the evidence set forth in the probable cause statement, what you've heard from the media, even from state and federal officials, *has not been tested in the crucible of a jury trial*.

Id.

The County Attorney then went further. He did not merely label the statements as allegations; he affirmatively explained the constitutional framework governing the case, the presumption of innocence, the State's burden of proof, and the jury's exclusive role as factfinder:

I understand the public's desire to know the facts. My own family has pressed me for more information. Why are we reluctant to share the details of the investigation and comment on the case? *Because I want to ensure a fair and impartial trial*. I became a prosecutor because of my love for the ideals of this great country and the principles embedded in our Constitution. The free exchange of ideas and opinions is critical to this great American experiment. *But so too are the protections afforded to the accused found in the Fifth and Sixth Amendments—the right against self-incrimination, the right to a speedy and public trial, the right to the effective assistance of counsel, the right to confront one's accusers, and the right to compel the attendance of witnesses.*

And perhaps most importantly, under our Constitution, the accused is presumed innocent until we, the State, prove to an impartial jury of defendant's peers his guilt beyond a reasonable doubt. That jury cannot rely on our allegations, on what they hear in the news, or on what they hear from a public official. The jury is the sole trier of fact. And they will ultimately determine those facts based on evidence a trial judge has determined is admissible. Again, as prosecutors, we bear the burden to prove guilt beyond a reasonable doubt. But make no mistake, we welcome this burden.

Id.

These statements were not cursory disclaimers. They constituted a clear, repeated, and substantive explanation of the presumption of innocence, the State's burden, and the limits of public commentary. Far from violating Rule 3.6, the County Attorney's remarks exemplify the careful distinction between allegations and adjudicated facts that the rule is designed to preserve.

The County Attorney Did Not Violate GRAMA

The defense also contends that the County Attorney violated GRAMA by disclosing information from the probable cause affidavit and probable cause statement. That argument ignores GRAMA's express treatment of judicial records.

GRAMA provides that judicial records are public unless restricted by court order or classified as private under the statute. Utah Code § 63G-2-301(2)(f). None of the statutory exceptions cited by the defense apply here. No rule of civil or criminal procedure restricts access to the Information or the probable cause statement it contains, and the Court has entered no order limiting their dissemination. Once filed with the district court, the Information and accompanying probable cause statement became court records belonging to the Court—not to the County Attorney, the Sheriff, or any other executive actor. The Court has imposed no limitation on access to those records.

The defense's theory would require prosecutors to file a public charging document and then treat its contents as prohibited from dissemination. But as discussed, Utah law does not support that position. Filing an Information is the formal act by which the State publicly charges offenses and details the facts that establish probable cause for those offenses. Reading or making available the contents of that public pleading therefore does not constitute an extrajudicial leak; it is the treatment of a public judicial record that Utah law expressly contemplates.

Nor were the County Attorney's statements beyond the reading of the Information prejudicial or inflammatory. He described undisputed facts inherent in the charging document, acknowledged the impact of the crime on the victim's family and community, and explained his statutory role in filing a notice of intent to seek the death penalty—a procedural step required to

be filed publicly. Nothing¹ in his remarks opined on Defendant's guilt, character, or credibility. To the contrary, he repeatedly emphasized the presumption of innocence and the jury's exclusive role as fact-finder.

Even if portions of the remarks were forceful, tone is not the governing standard. Prejudice is. The defense identifies no tainted juror, no voir dire failure, no interference with proceedings, and no concrete harm attributable to these statements. Allegations of rhetorical excess do not establish a case-specific, unmitigable risk to fairness. And Rule 4-401.01 does not authorize termination of courtroom transparency as a sanction for alleged past speech.

In sum, the defense's attempt to transform the public filing of a charging document into a sanctionable act would fundamentally distort the relationship between public court records and public discourse.

ii. GRAMA Does Not Transform Public Court Records Into Nonpublic Records

The default rule under Utah Code § 63G-2-201(2) is that records are public unless expressly classified otherwise. No GRAMA provision categorically classifies filed charging instruments as nonpublic. Discretionary protections under § 63G-2-305 authorize, but do not require, withholding in appropriate circumstances. They do not override Rule 4-202 or convert filed court records into confidential documents. More importantly, even if a particular disclosure

¹ The defense argues that the County Attorney improperly opined on the strength of the evidence when, at the conclusion of his Probable Cause Statement, he said, "Based on evidence received from Brian Davis of the Utah State Bureau of Investigations, I have reason to believe the defendant committed the offense(s) as charged herein." This is not a statement of opinion on the strength of the evidence, but as counsel well knows, standard language used in probable cause statements and affidavits that tracks probable cause caselaw. The defense also makes the specious claims that the County Attorney included the Probable Cause Statement "for no apparent reason other than advocacy since the magistrate had already found 'substantial evidence' to support the charges." Mot. at 109. As discussed, the rules require the inclusion of a probable cause statement for felony and class A misdemeanor charges. *See* Utah R. Crim. P. 4(c).

were imperfect under GRAMA, that does not support the remedy sought here. GRAMA violations are addressed through administrative or disciplinary mechanisms, not through closure of court proceedings. The defense’s argument collapses two distinct inquiries:

- (1) Whether a particular disclosure complied with GRAMA; and
- (2) Whether courtroom transparency should now be terminated.

Even accepting the first premise *arguendo*, the second does not follow.

iii. The Court Lacks Authority to Police or Restrain the Speech of Non-Party Elected Officials

Much of the defense’s argument rests not on the conduct of the prosecution, but on statements made by the Governor, federal officials, and other elected actors who are not parties, not prosecutors in this case, and not subject to this Court’s supervisory authority under Rule 3.6.

Courts have repeatedly recognized that prior restraints on the speech of members of the public, including elected officials, raise profound First Amendment concerns and are rarely, if ever, permissible. As the Arkansas Supreme Court recently explained: “[w]e cannot fathom why the circuit court believed it could prohibit the speech of ‘any public official now holding office.’ In fact, it is difficult to foresee any circumstance in which a prior restraint on the speech of a member of the public, which would include a public official, could be constitutional.” *Spencer v. State*, 2025 Ark. 91, 712 S.W.3d 296, 306–07.

This Court, much less the prosecution team, has no mechanism to silence the Governor, the President, or federal officials. More importantly, third-party speech cannot be transformed into a basis for restricting courtroom transparency. The constitutional response to external commentary is not to close judicial proceedings. The Utah Supreme Court has held that there are other reasonable and effective ways to ensure a fair trial in a case that is highly public:

Specifically, ‘*enlarging the venire*’ is recognized as a potential way to alleviate the problems in a particular case associated with selecting a fair and impartial jury. In addition, *voir dire* has long been recognized as an effective method of rooting out potential juror bias, especially when conducted in a careful and thorough manner. Finally, ‘*jury questionnaires*’ provide a reasonable method for identifying the extent of exposure prospective jurors may have had to news coverage about this case and assisting counsel in ferreting out people with fixed opinions.

State v. Allgier, 2011 UT 47, ¶ 20, 258 P.3d 589 (cleaned up) (emphasis added).

iv. Statements by the Sheriff and Undersheriff Do Not Establish Prejudice

The statements by Sheriff Smith and Undersheriff Bufton do not justify the remedy sought. First, neither officer opined on Defendant’s guilt or urged the public to reach a conclusion about the ultimate issue in the case. Sheriff Smith expressly rejected the premise that the case was “open and shut” and emphasized that the investigation was ongoing. His acknowledgment that evidence was accumulating reflected the contents of the publicly filed charging documents, not an extrajudicial assessment of guilt.

Second, the undersheriff’s comments regarding demeanor were expressly limited to what was visible in publicly broadcast courtroom footage. He repeatedly disclaimed personal knowledge, stating that he had not visited Defendant and was only describing what could be seen in the same images available to the public. Describing observable courtroom demeanor is not an assertion of guilt and does not create juror prejudice.

Third, neither official discussed inadmissible evidence, prior bad acts, or character evidence, nor did they urge the public to infer guilt from any protected trait. Their comments were brief, reactive to questioning, and grounded in information already public through court filings and courtroom proceedings.

Finally, even if the Court were to conclude that some statements were ill-advised, that possibility would not support termination of electronic courtroom coverage. Isolated media

commentary by non-party law enforcement officials does not establish that court-regulated coverage of judicial proceedings creates a reasonable likelihood of unmitigable prejudice. The Constitution does not permit closure of the courtroom as a sanction for third-party speech.

v. Inter-Agency Sharing and the Mugshot Do Not Establish Prejudice or Justify Termination

Even accepting the defense's description of the inter-agency sharing of the booking photograph or probable cause affidavit, the record reflects at most a question concerning governmental sharing, not public dissemination by the prosecution. Utah Code § 63G-2-206 expressly authorizes inter-agency sharing under specified conditions. But again, the dispositive point is not whether every technical step complied with GRAMA. The dispositive point is that even an imperfect disclosure does not establish prejudice warranting closure of the courtroom.

The defense identifies no juror taint, no voir dire failure, no inability to seat an impartial jury, and no interference with proceedings attributable to cameras. They identify only alleged past disclosures and then leap to the most extreme remedy available.

vi. The State Exercised Reasonable Care to Prevent Improper Extrajudicial Statements

The defense repeatedly suggests that prosecutors failed to control law enforcement and associated actors and thereby affirmatively contributed to prejudicial pretrial publicity. The record demonstrates the opposite. From the inception of this case, the State affirmatively and repeatedly exercised the precise "reasonable care" required by Rule 3.8(e) of the Utah Rules of Professional Conduct to prevent investigators, law enforcement personnel, employees, and others from making improper extrajudicial statements.

Rule 3.8(e) requires prosecutors to "exercise reasonable care to prevent investigators, law enforcement personnel, employees or other persons assisting or associated with the prosecutor in

a criminal case from making an extrajudicial statement that the prosecutor would be prohibited from making under Rule 3.6.” The State has not only exercised such care with respect to those listed in the rule, but it has extended that effort well beyond the prosecution team.

On September 12, 2025—the morning Tyler Robinson was booked into jail and four days before he was formally charged—the State emailed local police chiefs, the Utah County Sheriff, and the FBI. The email described the ethical rules governing extrajudicial statements, specifically referenced Rules 3.6 and 3.8, described the potential consequences for violations, and asked that public information officers and other officers strictly adhere to those rules in making any public statements regarding the Charlie Kirk shooting at Utah Valley University. The attached letter invited law enforcement to contact the Utah County Attorney’s Office with any questions. *See* Attachment A. That same day, the identical letter was sent to a lead investigator with the State Bureau of Investigations and to the Commissioner of the Utah Department of Public Safety. *See* Attachment B.

Two days later, on September 14, 2025, the State sent the same guidance to an adviser to Governor Spencer Cox, who forwarded it to the Governor’s general counsel. That email again emphasized Rules 3.6 and 3.8 and specifically highlighted subjects that should not be addressed publicly, including a suspect’s refusal or failure to make a statement to law enforcement. *See* Attachment C.

On September 15, 2025, the State sent a further email to local police chiefs, the Utah County Sheriff, FBI agents, and the FBI’s Special Agent in Charge, reiterating the obligations under Rules 3.6 and 3.8, acknowledging the extraordinary public interest in the case, and requesting that the guidance be disseminated throughout the recipients’ chains of command. *See* Attachment D.

On September 17, 2025, one day after formal charges were filed, the State sent similar guidance to the Washington County Sheriff, again outlining the subjects likely to have a prejudicial effect if discussed publicly and attaching the same letter. *See* Attachment E.

These efforts did not cease after the charging phase. On October 9, 2025, the State again circulated the September 12 letter to local law enforcement, the Utah County Sheriff, the FBI, and the Department of Justice, specifically referencing this Court's pretrial public order and asking that all witnesses be informed of their duty to comply with restrictions on public statements. *See* Attachment F.

The State also worked affirmatively with the Civil Division of the Utah County Attorney's Office and with other governmental entities to oppose the release of information under GRAMA that could jeopardize Defendant's right to a fair trial. *See, e.g.*, correspondence with Orem City (September 15, 2025), Utah County Government (September 19, 2025), Juab County (November 12, 2025), Millard County (November 12, 2025), and Iron County (November 12, 2025). *See* Attachment G.

In addition, the State directly contacted potential witnesses and provided guidance and copies of this Court's orders to prevent violations of Rule 3.6, including correspondence sent to Turning Point USA, the victim's widow, citizen witnesses, law enforcement officers, crime scene investigators, crime lab personnel, the hospital where Charlie Kirk was treated after the shooting, and family members and associates of Defendant. Similar warnings were sent to federal agencies, including the Bureau of Alcohol, Tobacco, Firearms and Explosives, as recently as January 26, 2026. *See* Attachment H.

This record demonstrates sustained, affirmative, and documented efforts by the State to caution against precisely the type of extrajudicial commentary the defense now cites, and those

efforts have been—and will continue to be—maintained throughout the duration of this case. In furtherance of that obligation, the State has notified defense counsel of GRAMA requests seeking police records and invited their participation where appropriate. As a result, the defense has been actively involved in GRAMA mediations, appeals, and disclosures.

Rule 3.8(e) requires reasonable care, not omnipotent control. The State cannot silence non-party elected officials or members of the public, but it did everything the rule contemplates—and more—to instruct, warn, and restrain those within its professional influence. Most importantly, even if isolated statements occurred despite these efforts, that fact does not support the extraordinary remedy sought here. Alleged imperfections in controlling third-party speech do not establish that court-regulated electronic coverage creates a reasonable likelihood of unmitigable prejudice. The Constitution does not permit termination of courtroom transparency as a retrospective sanction for alleged pretrial publicity.

vii. The Remedy Sought Is Grossly Disproportionate and Legally Unfounded

Even if every factual allegation in this section were credited, the remedy sought is wholly disproportionate. The defense does not seek refined decorum orders, tailored restrictions, juror protections, delayed release, or camera-placement adjustments. It seeks categorical termination of all electronic coverage based on alleged past misconduct by non-party actors. That remedy is not recognized by Rule 4-401.01, Supreme Court access jurisprudence, or any case cited in the motion. Restrictions must be based on a case-specific showing that courtroom transparency itself creates a substantial probability of prejudice that cannot be addressed through less restrictive means. Defendant does not even attempt to make that showing.

b. The Defense’s Claim That Traditional Remedies Are Unavailable or Ineffective Does Not Justify Termination of Electronic Coverage

Having failed to link alleged pretrial publicity to the remedy sought, the defense advances a second, independent theory: that traditional jury-management tools are so ineffective that the Court must terminate electronic coverage to prevent prejudice “at its inception.” That argument misstates the governing standard and the source of the asserted risk.

First, the defense’s reliance on ABA Public Discourse Standard 8-5.3 is misplaced. That Standard addresses tools for managing jury impartiality. It does not authorize categorical exclusion of the public from judicial proceedings. Under controlling precedent, restrictions on access must be justified by a case-specific showing that courtroom transparency itself creates a substantial probability of prejudice that cannot be mitigated through reasonable judicial control.

Second, the defense again conflates pretrial publicity generally with court-regulated electronic coverage. Most of the material the defense catalogs—political rhetoric, social-media commentary, national narratives—does not arise from courtroom broadcasting. It arises from sources wholly outside the Court’s control. Terminating courtroom coverage will not silence those actors. It will remove one of the few stabilizing influences available: public observation of the actual judicial process under judicial supervision.

Third, the defense’s invocation of *Sheppard* misstates its application. *Sheppard* emphasized active judicial management and tailored measures directed to concrete risks. It did not endorse categorical secrecy. *Chandler* later made explicit that electronic media coverage is not inherently prejudicial and that due process turns on demonstrable prejudice, not generalized fears. 449 U.S. at 581–83.

Fourth, the defense’s argument leads to an absurd result. If accepted, the more intense and widespread publicity becomes, the less transparent the judicial process should be. That proposition

is directly contrary to *Richmond Newspapers* and *Press-Enterprise I & II*, which recognize that openness is most critical when public interest is high and confidence in institutions is under strain.

Fifth, the defense's critique of voir dire and jury tools does not justify abandonment of the presumption of openness. Due process does not require elimination of all risk; it requires reasonable, proportionate measures tailored to demonstrated danger.

Sixth, the defense misidentifies the relevant inception point. The publicity it decries began long before any courtroom coverage and will continue independently of it. Terminating coverage will not prevent prejudice at its inception. It will simply ensure that the public receives information without evidentiary grounding or judicial context.

Finally, generalized social-science critiques do not alter the governing standard. The Supreme Court requires a showing of actual, identifiable risk arising from the challenged practice. *Chandler*, 449 U.S. at 581–83. That burden has not been met.

In short, the defense has shown only that this is a highly publicized case in a turbulent media environment. It has not shown that court-regulated electronic coverage creates a case-specific risk to fairness that cannot be mitigated through judicial control.

III. APPLICATION TO THE FACTS OF THIS CASE

a. This Case Was Already Public Before Cameras Entered the Courtroom

By the time any electronic coverage occurred, this case was already the subject of national reporting, political commentary, and online speculation. That publicity did not arise from courtroom broadcasting. It arose from the nature of the alleged offense, public statements by non-participants, and widespread media interest independent of judicial proceedings. The defense's suggestion that terminating courtroom coverage will meaningfully reduce public exposure is therefore untenable. What it will do is ensure that the public continues to receive information

without context, without evidentiary grounding, and without the moderating influence of judicial process.

Courts have long recognized that when a case is already widely discussed, openness can mitigate—rather than exacerbate—misinformation by allowing observers to distinguish between rhetoric and record. As the Supreme Court observed in *Chandler* (noting what the Florida Supreme Court concluded in *In re Petition of Post-Newsweek Stations, Florida, Inc.*, 370 So.2d 764, 780-81 (1979)), public observation under judicial control can contribute to the public understanding of the judicial process and enhance confidence in the fairness of the system. *See* 449 U.S. at 566. Here, shrouding proceedings from view would not prevent distortion; it would risk fueling it.

b. High-Profile Publicity Does Not Preclude a Fair Trial

Contrary to the defense’s assertion that Defendant cannot receive a fair trial because of pervasive media exposure and social media interest, recent high-profile criminal cases demonstrate otherwise. Courts have repeatedly found that even extraordinary publicity does not, without more, render a fair trial impossible.

In *Skilling v. United States*, 561 U.S. 358 (2010), the Supreme Court held that former Enron executive Jeffrey Skilling received a fair trial despite “vitriolic” media coverage and the economic collapse of Enron in the very community where the trial was held. *Id.* at 377. The Court emphasized that “prominence does not necessarily produce prejudice.” *Id.* at 381.

Similarly, in *State v. Chauvin*, 989 N.W.2d 1 (Minn. Ct. App. 2023), the Minnesota Court of Appeals upheld the conviction of former police officer Derek Chauvin for the murder of George Floyd, Jr., rejecting the argument that pervasive pretrial publicity, trial broadcasts, and extraordinary courthouse security prevented a fair trial. *Id.* at 19–22. The United States Supreme

Court declined review, leaving that ruling undisturbed. *Chauvin v. Minnesota*, 144 S. Ct. 427 (2023).

And in *United States v. Tsarnaev*, 595 U.S. 302 (2022), arising from the Boston Marathon bombing, the Supreme Court reinstated the death sentence in a case involving “intense public interest” and “significant pretrial publicity.” *Id.* at 309, 313. The Court held that the trial court’s extensive voir dire adequately screened for jurors who could set aside prior media exposure and decide the case on the evidence presented. *Id.* at 324.

These cases confirm what Supreme Court and other precedent has long recognized: even in cases of extraordinary notoriety, fair trials remain possible through careful jury selection and active judicial management. In short, Defendant can receive a fair trial despite the traditional media and social media interest in this case, and this Court possesses a full range of tools to ensure that result through active judicial management.

c. Transparency in This Case Serves to Counteract Misinformation and Restore Public Confidence

The defense repeatedly invokes misinformation, conspiracy theories, and distorted narratives as reasons to exclude cameras. The factual posture of this case demonstrates precisely why transparency is essential. Speculation and misinformation have already developed in the absence of full public access to courtroom proceedings. When the public cannot observe testimony, rulings, and evidentiary context directly, narratives inevitably fill the vacuum. Courts and commentators have repeatedly recognized that transparency serves as a corrective to misinformation. As the Supreme Court has emphasized, openness permits the public to participate in and serve as a check upon the judicial process—an essential component in our structure of self-government. *See Richmond Newspapers*, 448 U.S. at 592 (Brennan, J., concurring).

In high-profile prosecutions, regulated electronic coverage allows the public to evaluate evidence rather than speculation, judicial rulings rather than rumor, and process rather than narrative. Far from undermining fairness, such transparency strengthens the legitimacy of verdicts and public acceptance of outcomes.

d. The Court Has Already Demonstrated Its Ability to Manage Coverage

This Court has already issued decorum orders governing camera placement, scope, and conduct, and refined those orders when necessary and appropriate. Those orders reflect precisely the judicial control emphasized in *Chandler* as the constitutional safeguard against prejudice. 449 U.S. at 582–83.

Rule 4-401.01 expressly contemplates graduated responses. Termination is discretionary and appropriate only where lesser measures are inadequate. Alleged violations, particularly during pretrial proceedings, do not justify categorical prohibition where the Court retains authority to modify conditions, impose sanctions, restrict particular coverage, or suspend broadcasting temporarily if circumstances warrant. Indeed, the Court’s experience thus far demonstrates the opposite of what the defense claims: that active judicial supervision is effective and that refinement, not termination, is the appropriate remedy.

e. The Defense’s “Predominant Purpose” Argument Misstates the Legal Inquiry

The defense urges the Court to conclude that electronic coverage in this case is not for “journalism or dissemination of news,” but for sensationalism and profit. That argument misconstrues Rule 4-401.01.

The rule does not require the Court to police editorial motives, commercial incentives, or the tone of commentary. Journalism has always operated within economic realities. The relevant inquiry is whether coverage seeks to inform the public about judicial proceedings—not whether

all commentary is responsible or all audiences behave appropriately. Moreover, the defense’s position would effectively exclude the most consequential cases from public observation—precisely those where transparency matters most. Nothing in the rule supports such a paradoxical result.

f. Speculative Juror Prejudice Is Insufficient

The defense devotes extensive pages to discussing potential juror bias, yet identifies no instance in which electronic coverage of the courtroom has tainted a juror pool or interfered with proceedings. Supreme Court precedent is clear: speculation about bias is not enough. Courts rely on voir dire, instructions, sequestration, venue tools, and judicial supervision—not preemptive secrecy—to safeguard impartiality. *Chandler*, 449 U.S. at 574–78; *Nebraska Press Ass’n*, 427 U.S. at 562–68 (1976).

Importantly, many of the defense’s cited concerns—demeanor analysis, political rhetoric, online commentary—exist regardless of cameras. They arise from external actors, not from courtroom transparency.

g. Safety and Privacy Concerns Can Be Addressed Without Termination

The Court has already recognized the importance of safety and privacy. Nothing in the State’s position minimizes those concerns. But categorical termination is not the appropriate response. Courts routinely protect vulnerable witnesses, minors, and sensitive testimony through targeted measures: limiting coverage of specific witnesses, prohibiting filming of jurors, restricting close-ups, delaying release, or excluding cameras during particular phases. Rule 4-401.01 expressly authorizes such tailoring. The defense’s insistence that no such measures can work is unsupported by the record and contrary to widespread judicial practice.

IV. THE PUBLIC INTEREST STRONGLY FAVORS TRANSPARENCY IN THIS CASE

This case is not merely about the fate of one defendant. It implicates public trust in the justice system's ability to function independently of political pressure, media narratives, and public outrage. Courts have repeatedly recognized that transparency promotes institutional legitimacy and reduces reliance on rumor and speculation. *Richmond Newspapers*, 448 U.S. at 571–73.

Public access also serves the legitimate interests of the victim's family and the broader community, who have a profound stake in observing proceedings in cases of extraordinary public consequence. Allowing regulated coverage ensures that the public's understanding of this case is grounded in the courtroom record rather than filtered exclusively through speculative commentary.

NO EVIDENTIARY HEARING REQUIRED

Additionally, the State submits that no evidentiary hearing is necessary. The motion presents a legal question under Rule 4-401.01, and the defense identifies no actual interference with proceedings or juror prejudice attributable to cameras. The issue can be resolved on the existing record. The State has filed this response publicly. Because the motion seeks to restrict access on constitutional grounds, the State's opposition should remain part of the public record consistent with the presumption of openness.

CONCLUSION

The defense's motion is long, passionate, and broad. But length is not substance, and concern is not proof. What Rule 4-401.01 requires is not a referendum on modern media, but a disciplined, case-specific assessment of whether electronic coverage of courtroom proceedings creates a reasonable likelihood of harm that cannot be addressed through judicial management. Defendant has not made that showing.

The Court should therefore deny the motion to terminate electronic media coverage. To the extent the Court finds refinement or adjustment of existing decorum orders appropriate as proceedings advance, the State does not oppose reasonable, targeted measures. But the extraordinary relief sought—categorical restriction based on speculation and generalized critique—finds no support in the Constitution, Utah law, or the actual record of this case.

DATED this 30th day of January, 2026.

/s/ Lauren M. Hunt

Lauren M. Hunt
Deputy Utah County Attorney

/s/ Chad E. Grunander

Chad E. Grunander
Deputy Utah County Attorney

CERTIFICATE OF SERVICE

I certify that on 30th January, 2026, a copy of State's Memorandum Opposing Defendant's Motion to Exclude Still Photographers, TV Cameras and Microphones from the Courtroom was filed with the district court and served upon Defendant's counsel of record by email as follows:

/s/ Haley Christensen